

SOLE or LIMITED SOURCES JUSTIFICATION**Determination Memorandum for Acquisitions Over \$3,500 but not Exceeding the SAT**

All solicitations and orders shall be competed unless a justification to limit competition using an exception in FAR Part 8, 13, or 16, as applicable to the acquisition, is approved by the Contracting Officer. When the customer describes an item or service, which limits the availability to one source or a particular brand name, there must be a technical explanation describing why only that specific one will meet the government's requirement. Statements must be detailed and identify the harm that would come to the government (e.g. lack of capability or safety impact). The mission partner **MUST COMPLETE** all questions below, as applicable.

PURCHASE REQUEST OR REQUISITION NUMBER**ESTIMATED AMOUNT****1. BRIEF DESCRIPTION OF SUPPLIES OR SERVICES AND THE INTENDED USE.**

Naval Special Warfare (NSW) has a requirement to procure maintenance services for its wireless wearable medical devices that continuously monitor key vital signs. The devices are imperative for the candidate's health and safety. Initial warranties have expired and the Government now requires maintenance services.

2. THE CIRCUMSTANCE THAT REQUIRED LIMITING SOURCES TO A SINGLE MANUFACTURER OR SERVICE PROVIDER. (See FAR 8.405-6(a)(1)(i) and (b)(1) for exceptions that apply to orders under GSA schedules. See FAR 13.106-1(b)(1)(i) for open market purchase exceptions. See FAR 16.505(b)(2)(i) for exceptions that apply to orders against multiple award contracts.)

This is a sole source procurement for the maintenance of Vital Stream Systems with Caretaker Medical in accordance FAR 13.106-1(b)(1)(i). No other Source of supply exists.

3. THE RATIONALE THAT SUPPORTS THE EXCEPTION NOTED ABOVE. (e.g., compatibility with existing equipment, specific performance criteria, proprietary data, only one capable, urgency, logical follow on, satisfy minimum guarantee, etc.).

These Medical devices are used by NSWCCN Medical to monitor vital signs of candidates that participate in "hell week". This assures immediate recognition if any candidate's change of medical status and prevent delay of care. The medical monitoring device is FDA cleared type II medical device, has the ability to continuously monitor all vital signs, and has the ability for a provider to monitor the data. As the original equipment manufacturer of the Vital Stream Systems, Caretaker medical is the only authorized vendor to provide maintenance of existing systems. Obtaining maintenance services from an unauthorized source may lead to improper function of the devices which poses an unacceptable safety of life risk.

4. IF APPLICABLE, WHY IS THE PROCUREMENT SO URGENT THAT TIME WILL NOT ALLOW FOR ADVERTISING?

N/A

5. STATEMENT OF ACTIONS, IF ANY, THE GOVERNMENT MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION.

The Government will continue to monitor the market to determine if there are alternative wearable solutions or market entrants that would be authorized by the OEM to perform maintenance.

	SIGNATURE	CODE	TELEPHONE NUMBER	DATE
Mission Partner Approver (See Approval Levels Below)				10APR2025
CONTRACTING OFFICER				11APR2025

Mission Partner Approval Levels

Ech II	ACOS/SA or Deputy
Ech III	Department Head or Above
Ech IV	CO, XO, or CMC

This form may be used in lieu of the determination described in FAR 8.405-6(a)(1)(i), 8.405-6(b)(2), 13.106-1(b)(1), or 16.505(a)(4).